

TENTATIVE RULINGS

FOR: September 01, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. B Zoom

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Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer.
(Cal. Rules of Court, Rule 1.150(c) & (d))**

**** All matters originally set in Dept. A will be heard in Dept. B ****

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of Diego Bertolino

25PR000142

- [1] FIRST ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE AND ATTORNEY FOR CONSERVATOR
- and**
- [2] REVIEW – 1ST YEAR

TENTATIVE RULING: Both matters are CONTINUED to September 29, 2026, at 8:30 a.m. in Dept. A to permit Conservator to address the following item.

The Summary of Account indicates Disbursements in the amount of \$59,007.10, whereas Schedule C shows Disbursements in the amount of \$58,213.10. This discrepancy is not addressed through the Petition.

Petitioner may address this discrepancy either through an Amended Petition, or a Declaration, as appropriate. Any such document shall be served and filed on or before September 21, 2026.

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Estate of Richard Lane Wyant

26PR000002

PETITION FOR FINAL DISTRIBUTION ON WAIVER OF ACCOUNTING; FOR ALLOWANCE OF COMPENSATION FOR STATUTORY ATTORNEY FEES; AND FOR COSTS

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Rianna Mebane et al v. Jimmy Loy Moon et al

24CV001153

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING: The Motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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Thomas Pollock et al v. Angel Melendez Pimentel et al

25CV000964

DEFENDANT FEDERAL INSURANCE COMPANY'S MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION AND INTERROGATORIES

TENTATIVE RULING: The motion is DENIED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Defendant Federal Insurance Company (“Federal”) moves, pursuant to Code of Civil Procedure sections 2030.300 and 2031.310,¹ to compel Plaintiffs’ further responses, within 30 days, to Federal’s Special Interrogatories (Set One) Nos. 9-12 and 14-16; Form Interrogatories (Set One) Nos. 9.2, 12.3, 12.4, 12.6, and 50.3; Requests for Production (Set One) Nos. 1-7, 9-15, 17, 18, 22, 23-25, 27-29, 31-41, 43-47, 49, 50; and Requests for Production (Set Two) No. 47 propounded on Plaintiff Thomas Pollock and the corresponding requests propounded on Plaintiff Eileen Tabios.

The matter originally came on for hearing on August 11, 2026. The Court posted a Tentative Ruling the day before. There were no requests for oral argument and the Court adopted the Tentative Ruling on August 11 as the order of the Court. (See 8/11/206 Minute Order.) The August 11 Order continued the matter to September 1 and directed the parties as follows:

- 1) Federal shall submit a supplemental declaration to confirm the parties’ agreement to extend the deadline for Federal to move to compel responses to each set of discovery requests at issue. The supplemental declaration shall be served and filed no later than August 25, 2026.
- 2) The parties are ordered to engage in additional meet and confer efforts in light of the discussion below. Federal shall file a supplemental declaration stating facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion was made. The supplemental declaration shall be served and filed no later than August 25, 2026. The parties are further directed to file, not later than August 25, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel, in light of the parties’ meet and confer efforts.

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

- 3) The parties are also encouraged to meet and confer regarding the appointment of a discovery referee pursuant to Code of Civil Procedure, section 638. Upon any agreement, the parties may submit a stipulation and proposed order.

(8/11/26 Minute Order.)

On August 25, 2026, Federal filed a Supplemental Declaration and both parties filed Supplemental Separate Statements. The Supplemental Declaration of Brittany Fowler (“Fowler Suppl. Decl.”) confirms that the parties agreed to extend the deadline for Federal to move to compel responses to each set of discovery requests at issue. (Fowler Suppl. Decl., ¶¶ 2-15.) Moreover, the Fowler Suppl. Decl. and the parties’ Supplemental Separate Statements indicate that the parties were able to resolve all disputes, except with respect to RFP No. 24 (Tabios RFP No. 22), No. 41 (Tabios RFP No. 38) and No. 47 (Set Two).

Therefore, the Court’s ruling herein addresses only the three outstanding RFPs.

B. LEGAL STANDARD

A civil litigant’s right to discovery is broad. “[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (§ 2017.010; see *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301 [“discovery is not limited to admissible evidence”].)

“Relevancy to the subject matter of the litigation is a much broader concept than relevancy to the precise issues presented by the pleadings. [Citation.] ‘The ‘subject matter of the action’ is the circumstances and facts out of which the cause of action arises; it is the property, contract, or other thing involved in the dispute; it is not the act or acts which constitute the cause of action, but describes physical facts in relation to which the suit is prosecuted.’ [Citation.] Information is ‘relevant to the subject matter’ if its discovery will tend to promote settlement [Citation] or assist the party in preparing for trial [Citation].” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1760.)

The discovery statutes vest trial courts with wide discretion to allow or prohibit discovery, so long as they do not use such discretion to defeat the liberal policies on which such statutes are founded. (See *Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1107.)

On receipt of a response to a document demand, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

C. DISCUSSION

1. RFP No. 24 (Pollock) / No. 22 (Tabios)

This RFP requests all documents and communications relating to Plaintiffs’ separation from Paul Hastings, including any separation agreement. (Fed. Suppl. Sep. Stmt. (“FSSS”), 2:19-20.) In response, Plaintiffs assert several objections, including on relevance grounds, stating “Plaintiff’s separation from Paul Hastings occurred prior to the June 5 Fire and does not form the basis for any claim of damages in the instant action.” (*Id.*, 3:3-14.)

It appears Plaintiffs have since agreed to produce the separation agreement and documents specifically referencing Pollock’s separation. (Fowler Suppl. Decl., ¶ 21; Pltfs’ Suppl. Sep. Stmt (“PSSS”), 5:12-19.) This apparent agreement is not reflected in Plaintiffs’ discovery response, but it certainly appears reasonable to the Court.

Federal contends that Plaintiffs’ production must include documents regarding Pollock’s job performance or ability to fulfill his professional obligations that relate to his separation from Paul Hastings, even if those documents do not specifically reference Pollock’s separation from the firm. (FSSS, 4:14-16.) Federal argues such documents are relevant because (1) Pollock’s separation from Paul Hastings occurred in 2023, just two years before Pollock’s separation from DLA Piper, (2) Plaintiffs are seeking lost income based on Pollock’s separation from DLA Piper in 2025, and (3) Federal needs employment records dating back to 2023, as comparison data, to test Plaintiffs’ claim that Pollock was unable to fulfill his professional obligations in 2025 due to conduct by Federal. Federal acknowledges that it has charts of Pollock’s hours worked dating back to 2017 at Paul Hastings, and that the charts show Pollock’s hours were low even before his employment at DLA Piper. Federal argues that the charts are insufficient because they do not provide any explanation of why Pollock’s hours were low, and the charts might not be admissible. In essence, Federal contends that, if Pollock has consistently been a poorly performing employee, that undermines Plaintiffs’ claim that Federal is at fault for Pollocks’ separation at DLA Piper.

Plaintiffs argue that Federal already has responsive documents in its possession from a third-party subpoena served on Paul Hastings. (PSSS, 3:13-15.) Plaintiffs contend that the only Paul Hastings’ document Federal references in support of its theory that Pollock’s separation from Paul Hastings was due to poor performance is Federal’s reference to his billable hours from 2017 and 2019 (seven and five years before his separation from Paul Hastings). Rather, Plaintiffs

contend that the discovery produced by Paul Hastings “shows the robust nature of Mr. Pollock’s hours at Paul Hastings prior to his separation from that firm.” (PSSS, 6:2-5, citing evidence.) Thus, Plaintiffs argue this RFP is an improper fishing expedition.

Plaintiffs further argue that “Federal’s own theory of relevance that documents may show a pre-existing pattern of low billable hours that ‘predate the fires at his property and his related insurance claims’—does not establish that Mr. Pollock’s Paul Hastings employment records are responsive to a request framed around his separation. RFP No. 24 is framed narrowly around the fact and circumstances of the Paul Hastings separation itself.” (PSSS, 4:1-5.) “That speculative theory of relevance does not convert every billable-hour and performance record from Mr. Pollock’s earlier employment into a document ‘relating to’ his separation, and it underscores precisely the guesswork Section 2031.030 is designed to prevent a responding party from having to undertake.” (*Id.*, 4:9-12.)

The Court agrees with the points advanced by Plaintiffs, and finds that Federal failed to show (1) that the documents it seeks are even necessarily responsive to the RFP as written, and (2) good cause for the documents sought (as phrased in its Supplemental Statement.)

The Motion as to RFP No. 24 (Pollock) / No. 22 (Tabios) is DENIED.

2. RFP No. 41 (Pollock) / No. 38 (Tabios)

This RFP requests all communications from January 1, 2025 to present, relating to Plaintiffs’ finances, including any communications with their financial advisors. (FSSS, 6:3-4.) In response, Plaintiffs asserted several objections and stated that they were willing to meet and confer to discuss appropriate limitations and protections. (*Id.*, 6:12-7:4.)

During the parties’ meet and confer, Federal agreed (i) that Plaintiffs need not re-collect and reproduce responsive documents previously produced in the Glass Fire litigation; (ii) to narrow this request to seek documents from 2018 to present; and (iii) to adopt Plaintiffs’ definition of “relating to.” (Fowler Suppl. Decl., ¶ 22; FSSS, 7:20-23.) Federal also offered to address Plaintiffs’ concern of the request being overbroad through search terms, and further offered to limit the request to communications with representatives of banks, lenders, accountants, financial advisors, financial institutions, or other entities with which Plaintiffs have deposited money, obtained a loan, invested, or considered investing. (Fowler Suppl. Decl., ¶ 22.)

Plaintiffs did not agreed to produce documents and maintain their objections.

Federal argues that the discovery is relevant “in view of Plaintiffs’ claims for damages based on the premature depletion of their savings and retirement accounts, purported lost income, and additional living expenses based on their claimed standard of living.” (Fowler Suppl. Decl., ¶ 22; FSSS, 7:6-17.) Federal argues that Plaintiffs’ bank statements and investment account statements are insufficient because they do not show *why* money was spent and accounts were purportedly depleted. It claims the reason for the movement of money is necessary to test Plaintiffs’ claim that Federal is to blame. (FSSS, 8:14-26.)

Plaintiffs show that their production efforts with respect to their finances have been extensive and are continuing. (PSSS, 8:8-27.) Plaintiffs argue that this catch-all request for finance-related *communications* is too overbroad, vague and ambiguous, forcing speculation on the part of Plaintiffs, to justify the further intrusion into Plaintiffs' privacy.

The Court agrees with Plaintiffs. The Court construes Federal's offer to use search terms to further narrow the request as an implicit concession that the request, as stated, is overbroad. Even Federal's theory for relevance—that it seeks the answer to why money moved—is overbroad, suggesting that this RFP is an improper fishing expedition. Certainly, Federal is not contending that every single movement of money from 2018 to the present is relevant; thus, Federal cannot reasonably argue that communications relating to Plaintiffs' finances from 2018 are relevant. It appears Federal has, in its possession, documents regarding Plaintiffs' finances, such that Federal can identify certain movements of money and direct a properly tailored discovery request.

Based on the foregoing, the motion as to RFP No. 41 (Pollock) / No. 38 (Tabios) is DENIED.

3. RFP (Set Two) No. 47

This RFP requests all September 27, 2020, to the present documents and communications relating to the sale, attempted sale, offer for sale, auction transfer, marketing, valuation, appraisal, payment, proceeds or other disposition of Plaintiffs' wine collection, or any portion thereof, including any documents and communications reflecting sale confirmations, invoices, receipts, account statements, wire confirmations, canceled checks, appraisals, valuations, inventories, condition reports, provenance records, advertisements, listings, or auction materials. (FSSS, 9:13-19.)

In response, Plaintiffs asserted several objections and stated that “following the entry of an appropriate Protective Order, to the extent Plaintiffs contend that any disposition of a portion of the wine collection is relevant to their alleged damages arising from Defendant's failure to pay benefits owed under the policy (including, for example, costs associated with storage), as a result of the June 5, 2024 Fire, Plaintiffs will produce for defendant's inspection and copying, at a time and location mutually convenient for Plaintiffs and Defendant Chubb, non-privileged documents sufficient to show the occurrence, timing, and general proceeds of any such disposition of Plaintiffs' wine collection from June 5, 2024 to the present.” (*Id.*, 10:20-27.)

Federal argues that the discovery is relevant because the sale of Plaintiffs' wine collection—the reported value of which was approximately \$1 million to \$1.5 million—bears directly on the condition of Plaintiffs' property following the Glass Fire, which condition Plaintiffs have put at issue by alleging that Federal failed to properly determine the amount of insurance for their property post-Glass Fire. (FSSS, 11:5-12:15, 13:2-4.) Plaintiffs maintain that *their own* representations about the condition of their property post-Glass Fire are irrelevant. Federal argues they are party admissions relevant to test the position Plaintiffs have taken in this litigation.

Federal acknowledges that it possesses an expert report regarding the valuation of Plaintiffs' wine collection prepared by a wine expert, Thatcher Baker-Briggs, served in February 2025, after the Glass Fire. However, Federal argues that the 2025 report is insufficient because Plaintiffs sold the collection in spring 2026. Moreover, Federal emphasizes that the report does not include Plaintiffs' representations regarding the condition of their property, which is specifically what it seeks.

Plaintiffs argue that the sale of the wine collection is not the subject of any claim in this litigation. (PSSS, 12:22-24.) With respect to Federal's need for Plaintiffs' state of mind or representations regarding the post-Glass Fire / pre-Crystal Fire condition of the property, Plaintiffs argue that the theory is entirely speculative and far too attenuated to establish relevance. Specifically, Defendant's speculation about what Plaintiffs may have represented to unidentified third parties concerning the condition of their wine—which was not stored in the Main Dwelling, and was not at the property for the Crystal Fire (and therefore no under/over-insurance claim exists as to it)—has no bearing on the Property's actual condition before the Crystal Fire.

As a starting point, the Court believes there is only a minimal showing of good cause for discovery regarding the value of Plaintiffs' wine collection. The extent of the relevance is that the wine value provides *some level* of insight into the effects of the Glass Fire on Plaintiffs' property, based on the claims asserted by Plaintiffs about Federal failing to properly value and insure their property after the Glass Fire. However, the relevance in the value of the *wine* is attenuated because that specific portion of the property is not directly subject to Plaintiffs' claim for over- or under-insurance.

The Court recognizes that the value of Plaintiffs' wine collection is not the subject of the current discovery dispute. Indeed, Federal already possesses an objective valuation of the wine collection—the 2025 report. The Court provides its reasoning as to the minimal good cause for the objective value of the wine collection to support its conclusion that there is no good cause for the discovery Federal seeks now—that is, *Plaintiffs' representations* of the wine collection value, which is a further step away from the already-attenuated value of the wine. The only relevance of Plaintiffs' representations that Federal has articulated is Federal's entitlement to prior party admissions contradicting their current position. However, Federal fails to cite any authority supporting such entitlement in discovery, nor does Federal explain how any such contradicting admissions undermine Plaintiffs' claim of over- or under-insuring the property *where an objective valuation already exists*.

Based on the foregoing, the motion as to RFP No. 47 is DENIED.

.....
Jose Antonio Ceballos Cruz v. Cakebread Cellars

25CV002628

DEFENDANT CAKEBREAD CELLARS' MOTION FOR MONETARY SANCTIONS,
JOINTLY AND SEVERALLY AGAISNT PLAINTIFF AND HIS COUNSEL OF RECORD
AND TERMINATING SANCTIONS, OR IN THE ALTERNATIVE, COMPLIANCE WITH
THIS COURT'S DISCOVERY ORDER

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff's counsel of record Christopher L. Burrows is ordered to remit, as monetary sanctions, payment in the amount of \$3,080 to Defendant Cakebread Cellars (Cakebread), care of its counsel of record, no later than 30 days after entry of the instant order. Cakebread's request for terminating sanctions is DENIED.

On February 6, 2026, Cakebread propounded on Plaintiff Jose Antonio Ceballos Cruz Requests for Production of Documents (Set One), Form Interrogatories (Set One) – General, Form Interrogatories (Set One) - Employment, and Requests for Admissions (Set One) (collectively the Subject Discovery). Plaintiff's responses to the Subject Discovery were due on or before March 9, 2026. As of April 24, 2026, Cakebread had received no response to the Subject Discovery and had not requested any extension of the deadline for responding, and was therefore forced to move for an order compelling Plaintiff to honor his obligations to respond to the Subject Discovery.

By Minute Order of May 21, 2026, the Court granted, in part, the motion to compel, and ordered Plaintiff to serve, no later than June 4, 2026, code-compliant responses to the Requests for Production of Documents, Set One, Form Interrogatories – General, Set One, and Form Interrogatories – Employment, Set One. The Court denied the motion as to the Requests for Admissions. The Court then awarded Cakebread monetary sanctions in the amount of \$1,300.

Defendant Cakebread Cellars now moves, pursuant to California Code of Civil Procedure sections 2023.010, subdivision (g), 2023.030, subdivisions (a) and (d)(1), 2023.030, subdivision (d)(3), 2023.040, 2023.050, subdivision (a) and 2031.230, subdivision (a): (1) for an award of monetary sanctions against Plaintiff and his counsel of record, jointly and severally, in the amount of \$3,250 for reasonable expenses and attorney's fees incurred in connection with this proceeding; and (2) for an order of terminating sanctions either striking Plaintiff's Complaint or dismissing the action. Defendant further moves for an additional mandatory \$1,000 sanction in conjunction with the monetary sanctions. In the alternative, Defendant moves for an order compelling compliance of document production and interrogatory responses in accordance with this Court's May 21, 2026, Order.

Plaintiff concedes, through the late-filed Opposition, that although he has made efforts at responding to the Subject Discovery, as of the filing of the instant motion on July 27, 2026, he has not fully complied with the Court's May 21, 2026, Order. (See, *e.g.*, Opposition at 2:19-21, 3:21-26.)

Disobeying a court order to provide discovery is a clear misuse of the discovery process. (Code Civ. Proc. § 2023.010.) To the extent authorized by the statute or statutes governing the particular form of discovery, the court may impose sanctions upon any party misusing the discovery process, including terminating sanctions consisting of an order striking the party's pleading. (Code Civ. Proc. § 2023.030, subd. (c).) If a party fails to obey an order compelling further response to interrogatories, "the court may make those orders that are just, including the imposition of . . . a terminating sanction . . ." (Code Civ. Proc. § 2023.030, subd. (d).) In lieu of, or in addition to, that sanction, the court may impose a monetary sanction...." (*Ibid.*)

“The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks, but the court may not impose sanctions which are designed not to accomplish the objects of discovery but to impose punishment.” (*Laguna Auto Body v. Super. Ct.* (1991) 231 Cal.App.3d 481, 488, quoting *Motown Records Corp. v. Super. Ct.* (1984) 155 Cal.App.3d 482, 489.) The sanctions imposed must be tailored to “fit the crime.” (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293.) “The penalty should be appropriate to the dereliction and, should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.)

The Court shares Cakebread’s frustration with Plaintiff’s lackadaisical approach to discovery. “It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) Failing to comply with a Court order on such motion places a two-fold burden on the Court’s impacted judicial resources.

Plaintiff offers no explanation for his ongoing failure to honor his discovery obligations and his failure to abide by the Court’s orders.

However, because Plaintiff continues to make efforts at satisfying his discovery obligations, the Court finds the imposition of terminating sanctions would be excessive to the dereliction.

The Court does, however, find good cause for granting the requested monetary sanctions. The Court finds that counsel’s rate of \$260 per hour is consistent with rates typically charged in the community for comparable work. (See Declaration of Christina R. King at ¶ 27.) The Court also finds that eight hours is a reasonable amount of time for researching and drafting the instant motion. (See *ibid.*) However, the Court does not award monetary sanctions for anticipated fees.

As set forth in the Court’s May 21, 2026, Minute Order, the Court finds that neither Plaintiff nor his attorney of record “respond[ed] in good faith to . . . an inspection demand made pursuant to Section 2031.010.” (§ 2023.050, subd. (a)(1).) As such, “in addition to any other sanctions imposed . . . [the Court] shall impose a one-thousand-dollar (\$1,000) sanction” on Plaintiff and/or his counsel of record. (See *ibid.*)

Through his Opposition, Plaintiff states that “any award should be . . . imposed against counsel rather than Plaintiff, and made payable within at least 30 days.” (Opposition at 7:20-23.) As the Opposition was drafted and submitted by counsel, the Court agrees to these modifications of the requested monetary sanctions.

Based on the foregoing, Cakebread's request for an award of monetary sanctions is GRANTED IN PART; Christopher L. Burrows, as counsel of record for Plaintiff, is ordered to remit to Cakebread no later than 30 days after entry of the instant order, monetary sanctions in the amount of $(\$260/\text{hr.} \times 8\text{hrs.}) + \$1,000 = \$3,080$.

Finally, while both parties discuss, through their respective briefs, ongoing difficulty in scheduling Plaintiff's deposition, neither the April 24, 2026, Motion to Compel, nor the Notice of Motion of the instant motion formally requests the Court's intervention in that dispute. As such, issues relating to the scheduling of that deposition are not formally before the Court on the instant Motion.

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Wells Fargo Bank, N.A. v. Isabella A Bottarini

26CV000621

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING: The motion is GRANTED.

Plaintiff, Wells Fargo Bank, N.A. moves, pursuant to Code of Civil Procedure sections 2033.010, 2033.020, 2033.250, 2033.280, and 2033.420, for an order deeming admitted the truth of matters specified in the Request for Admissions propounded on Defendant, Isabella A Bottarini.

A. FACTUAL FINDINGS

Based on the evidence submitted in support of the motion, the Court finds as follows.

1. On May 26, 2026, Plaintiff propounded on Plaintiff Ms. Bottarini Requests for Admissions - Set One (Requests). (See Declaration of Edgar B. Lopez at ¶ 2-3, Exhs. 1.) (Lopez Decl.).)
2. The Requests were served on Ms. Bottarini by mail at her address of record in the action. (See *id.* at Exh. 1.)
3. Ms. Bottarini's responses to the Requests were due on or before June 30, 2026. (See Cal. Code Civ. Proc., § 2033.250.)
4. As of the filing of the present motion, Ms. Bottarini had not responded in any manner to the Requests and had not requested any extension of the deadline for responding. (See Lopez Decl. at ¶ 5.)

Plaintiff appears to concede the foregoing by failing to file anything in opposition to the motion.

B. LEGAL ANALYSIS

Where “a party to whom requests for admission are directed fails to serve a timely response . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction...” (Code Civ. Proc., § 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (*Id.* at subd. (c).)

It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (*Id.* at subd. (c).)

Because Plaintiff failed to serve a timely response to the Requests for Admissions, either prior to the filing of the motion or before hearing on the motion, Defendant is entitled to an order deeming genuine all documents identified in the requests and further deeming admitted all matters specified in the requests.

Based on the foregoing, the motion is GRANTED.

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Okell Holdings, LLC et al v. Quantum Limited Partners, LLC et al 26CV001310

MOTION BY DEFENDANTS TO COMPEL ARBITRATION AND STAY ACTION

TENTATIVE RULING: The motion is GRANTED. The Court will sign the Proposed Order. A Review Hearing Re: Status of Arbitration is set for March 4, 2027 at 8:30 a.m. in Dept. A. The Case Management Conference on December 1, 2026 is VACATED.

Defendants Quantum Limit Partners, LLC, Glenn C. Rice, and Cynthia Anne Hoy (erroneously sued as Cynthia Rice) (“Defendants”) move, pursuant to the California Arbitration Act (Code Civ. Proc. §§ 1281.2, 1281.4) and the Federal Arbitration Act (9 U.S.C. §§ 3, 4), for an order (i) compelling arbitration of the six causes of action set forth in Plaintiffs’ Verified Complaint and (ii) staying this action pending completion of the arbitration.

Plaintiffs filed a Limited Opposition, in which they state they “do not oppose arbitration of the substantive claims alleged in the Verified Complaint. This limited opposition concerns only the scope of the requested stay and seeks confirmation that any order compelling arbitration preserves this Court’s authority, pursuant to the parties’ Settlement Agreement and Code of Civil Procedure section 1281.8, to consider future requests for provisional relief in aid of arbitration.” (Opp., 1:22-26.) Plaintiffs request that “[a]ny order compelling arbitration should expressly preserve this Court’s jurisdiction . . . to consider any future request for provisional relief in aid of arbitration. Accordingly, the stay should not preclude either party from seeking such relief if the statutory standard is satisfied.” (Opp., 5:10-13.)

As Defendants note in Reply, the Proposed Order provides: “Pursuant to Code of Civil Procedure section 1281.4, this action is stayed pending completion of the arbitration, *except for proceedings concerning provisional relief permitted by Code of Civil Procedure section 1281.8.*” (8/5/26 Proposed Order. Emphasis added.) The Court further notes, as Plaintiffs acknowledge in their Limited Opposition, that Defendants’ Motion expressly states the requested stay “will not interfere” with injunctive relief, noting that “[b]oth the settlement agreement (paragraph 17.1) and the California Arbitration Act (Code Civ. Proc., § 1281.8, subd. (b)) authorize a party to seek injunctive relief from the Court even if arbitration is pending.” (Mem., 12:6-9.)

Thus, Plaintiffs’ concern regarding the scope of the stay appears moot. Because the motion is otherwise unopposed, and Plaintiffs expressly agree to arbitration, the motion is GRANTED.

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In The Matter of Sydney Maria Lynn Delima

26CV001413

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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****at 1:30 p.m.****

Reed Woodson v. City of St. Helena et al

26CV000379

PETITIONER’S MOTION FOR JUDGMENT ON THE PEREMPTORY WRIT OF ADMINISTRATIVE MANDATE

APPEARANCE REQUIRED. The Court will hear argument from the parties regarding the below tentative ruling on September 1, 2026, at 1:30 p.m. in Dept. B. The parties need not request or notice a request for oral argument, as otherwise required by Local Rule.

TENTATIVE RULING: The Petition is DENIED.

A. PRELIMINARY MATTERS

By the instant litigation Mr. Woodson seeks an order directing the St. Helena City Council to vacate and reconsider its November 25, 2025, Ruling, made after hearing on the matter on November 18, 2025, upholding the October 10, 2025, decision by Joseph M. Leach, as administrative hearing officer, assessing transient occupancy tax (TOT), penalties, and interest against Mr. Woodson in the amount of \$48,566.05.

B. ADMINISTRATIVE RECORD

Through the Memorandum filed in support of Petitioner's Motion for Judgment on the Peremptory Writ of Mandate (Support Memo and Motion for Judgment, respectively), Petitioner asserts that "[t]his writ petition turns on a simple administrative-record fact: before Respondents finalized the assessment against Petitioner, the City's own outside counsel warned in writing that the City had not given Petitioner notice, had not issued a citation allowing an appeal, and had not afforded any other method to challenge the violation or potential fines. That memorandum is in the administrative record." (Id. at 7:1-5.)

Unfortunately, Petitioner does not appear to have lodged a curated "Administrative Record" with the Court. On July 16, 2026, Petitioner filed a Notice of Lodgment of Administrative Record which states, "[t]he lodged record comprises the following items, consecutively paginated beginning at AR 0001" and separately identifies 22 documents and one recording on unidentified electronic media. However, the Court has no record that the described "Administrative Record" was ever lodged.

On June 25, 2026, in support of his Motion for Judgment, Petitioner filed a declaration that purports to authenticate 13 exhibits identified as Exhibits A through M. Between July 16 and 17, 2026, Petitioner filed two more Declarations and a Request for Judicial Notice, each with exhibits attached. None of these exhibits is labelled "Administrative Record," and none bear pagination in the form AR XXXX. Moreover, it is unclear whether any of the 22 documents identified in the Notice of Lodgment of Administrative Record are among those attached to these Declarations and Request for Judicial Notice.

In addition, neither Petitioner's Supporting Memorandum nor Respondent's Opposition contains any citation in the form "AR XXXX." From this, the Court concludes that, in spite of the Notice of Lodgment of Administrative Record, no formal Administrative Record has been served in support of the Petition, and speculates that none has been created.

To add complexity, Respondent asserts, through the Opposition, that "Petitioner repeatedly relies upon declarations, exhibits, Public Records Act ('PRA') documents, and factual allegations that either were not before the City Council when it rendered its November 25, 2025, decision or have not been shown to satisfy the limited requirements for augmentation of the administrative record under Code of Civil Procedure section 1094.5, subdivision (e)." (Opposition at 7:4-8.) Respondent does not, however, move to strike, or bring evidentiary objections against any documents filed by Petitioner.²

Where no alternative writ is sought, "the administrative record shall be filed as expeditiously as possible, and may be filed with the petition, or by the respondent after payment of the costs by the petitioner, where required, or as otherwise directed by the court." (Code Civ. Proc., § 1094.5, subd. (a).) Thus, the Court may properly consider matters filed by Petitioner. However, the scope of matters that the Court may consider is precisely defined by law.

² On August 5, 2026, Respondents filed a Notice of Supplementing Petitioner's Administrative Record. The Court need not determine whether Respondent has made a sufficient showing that these documents are properly in the "Administrative Record" as they are not relevant to the Court's analysis in light of Petitioner's concession that "Petitioner does not dispute that he rented his home, the periods during which he did so, or the arithmetic by which the City computed the assessment." (Reply at 1:22-23.)

“The general rule is that a hearing on a writ of administrative mandamus is conducted solely on the record of the proceeding before the administrative agency. [Citation.] Section 1094.5 contains limited exceptions to this rule. ‘It is error for the court to permit the record to be augmented, in the absence of a proper preliminary foundation . . . showing that one of these exceptions applies.’ [Citation.]” (*Toyota of Visalia v. New Motor Vehicle Bd.* (1987) 188 Cal.App.3d 872, 881.) “Where the court finds that there is relevant evidence that, in the exercise of reasonable diligence, could not have been produced or that was improperly excluded at the hearing before respondent, it may enter judgment as provided in subdivision (f) remanding the case to be reconsidered in the light of that evidence; or, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, the court may admit the evidence at the hearing on the writ without remanding the case.” (Code Civ. Proc. § 1094.5, subd. (e).) “Only where the record is augmented within the strict limits set forth in the statute is evidence on the main issues ever received in the superior court [citation].” (*Windigo Mills v. Unemployment Ins. Appeals Bd.* (1979) 92 Cal.App.3d 586, 595 (*Windigo Mills*).)

Petitioner makes no formal request for the Court to consider extra-record evidence. It therefore appears left to the Court to determine what of the materials provided are within the proper scope of the Administrative Record.

The Court finds that the universe of submitted exhibits that may properly be considered in support of the instant Petition includes Exhibits K (Staff Report) and L (Summary and Ruling Following Appeal to the City Council hereafter referred to as Summary and Ruling) attached to the Declaration of Reed Woodson filed June 25, 2026 (June 25 Woodson Decl.). Under a section of the Staff Report titled “Documents Attachments [sic]” is the following “10.10.25 Administrative Hearing Ruling 270 Pratt Ave-c1 FINAL signed2 JJS Revised Statement Regarding City of St. Helena STR Enforcement at 270 Pratt Avenue.” The phrase “10.10.25 Administrative Hearing Ruling 270 Pratt Ave-c1 FINAL signed2” appears to refer to the document attached as Exhibit J to the June 25 Woodson Decl. That document, therefore, also appears to be properly made a part of the Administrative Record. The Court is unable to identify any document that might correspond to the phrase “JJS Revised Statement Regarding City of St. Helena STR Enforcement at 270 Pratt Avenue.”

The Summary and Ruling states that “Mr. Woodson submitted a written statement in support of his appeal on November 10, 2025.” While it appears that this document was before the City Council, below, the document does not appear to have been filed in this action.³

Petitioner has made no showing that any of the other exhibits to any of his Declarations and/or the subjects of the Request for Judicial Notice were in the record before the City Council, nor has he made a foundational showing that any of the exceptions of Code of Civil Procedure section 1094.5, subdivision (e) apply to any of these other documents.

Based on the foregoing, the Court finds that the Administrative Record consists, in its entirety, of Exhibits J, K, and L, to the June 25 Woodson Decl.

³ Mr. Woodson, through his Declaration filed July 17, 2026, refers to the statement, but does not attach a copy. (See *id.* at ¶ 4.)

C. LEGAL ANALYSIS

The potential questions raised through a petition for so-called administrative mandamus under Section 1094.5 are “whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.” (Section 1094.5, subd. (b).)

Petitioner bears the initial burden of proof on his claims. “In an action for administrative mandamus, ‘[i]t is presumed that an administrative agency regularly performed its duty, and the burden is on the party challenging the agency’s actions to prove an abuse of discretion.’” (See *Save Laurel Way v. Redwood City* (2017) 14 Cal.App.5th 1005, 1011.) Consequently, Petitioner has both the burden of producing evidence, pursuant to Evidence Code Section 550, and of persuading the Court that the Respondent’s decision was invalid and should be set aside, pursuant to Evidence Code Section 606.

“A petitioner has the burden to provide a partial record that will allow sufficient and effective review by the court. A partial record of an administrative proceeding is sufficient for the purposes of section 1094.5, subdivision (a) if it provides the reviewing court a basis for the affirmance or reversal of the order or decision, and establishes where in the proceedings the administrative body proceeded in excess of its jurisdiction, or denied a fair hearing or abused its discretion. This partial record must accurately represent the administrative proceedings, provide the reviewing court an understanding of what occurred below, and enable that court to provide an independent judicial review of the administrative decision.” (*Elizabeth D. v. Zolin* (1993) 21 Cal.App.4th 347, 355.)

1. Constitutional Notice

Petitioner alleges that “The City failed to provide Petitioner with constitutionally required notice and a meaningful opportunity to cure prior to assessing civil penalties, as its own City Attorney explicitly recognized was legally required.” (Petition at ¶ 28, subd. (a).)

Through his Reply brief, Petitioner states “Petitioner does not dispute that he rented his home, the periods during which he did so, or the arithmetic by which the City computed the assessment. Taking the City’s own calculation as given, what he disputes is how far the City may lawfully reach in collecting that tax, together with its penalties and interest.” (Reply at 1:22-25.)

While somewhat vague, it appears that Petitioner’s legal theory is that the assessment is improper in light of the time that passed between Respondent’s learning that Petitioner was renting the property, and Respondent’s undertaking of efforts to collect the taxes due thereon. “Section 3.28.080 of the St. Helena Municipal Code (‘SHMC’) both empowers the City to assess an unremitted transient occupancy tax and commands when it must do so: ‘as soon as’ the tax administrator has the facts, she ‘shall proceed to determine and assess.’ The City invoked the power and ignored the command. It had notice of the rental in July 2021 and did nothing for two

years. Its silence deprived Petitioner of the opportunity to bring the property into compliance and cease the short-term rental, so that no further tax, penalties, or interest would have accrued . . .” (Reply at 1:26-32.)

There is no evidence before the Court that Petitioner raised this precise argument below. “The petitioner bears the burden of demonstrating that the issues raised in the judicial proceeding were first raised at the administrative level. [Citation.]” (*Sierra Club v. City of Orange* (2008) 163 Cal.App.4th 423, 536 (*Sierra Club*); see also *Hagopian v. State of California* (2014) 223 Cal.App.4th 349, 371.)

As noted above, while the Summary and Ruling states that “Mr. Woodson submitted a written statement in support of his appeal on November 10, 2025” that statement does not appear to have been filed in this action. Moreover, the Summary and Ruling states that “Reed Woodson was not present, in person or virtually, during the appeal hearing.”

As relates to the instant issue, the Summary and Ruling furthest states that “[i]n his written statement, Mr. Woodson alleges a failure to notify him of the violations appealed herein. However, Mr. Woodson provides no evidentiary support to that allegation.”

Through his Memorandum filed in support of the Motion for Judgment (Support Memo), Petitioner asserts that “The Wahba Memorandum is in the administrative record. It was raised at the July 24, 2025, administrative hearing. At minimum, it is material record evidence directly supporting Petitioner’s notice and fair-hearing objections. Yet the November 25, 2025, written decision does not address it.” (See *id.* at 14:8-11.)

Regardless of whether the Wahba Memorandum was part of the record before Mr. Leach, it would only be relevant to the present action if it were also before the City Council on the appeal of Mr. Leach’s decision. There is no record that matters contained in the Wahba Memorandum were raised in that appeal. There is no indication in the record before the Court that Petitioner cited to the Wahba Memorandum in his November 10, 2025, Statement. The Wahba Memorandum is not cited or discussed in any of Exhibits K or L to the June 25 Woodson Decl. As such, the Court finds no showing that it may be included in the Administrative Record in this action, nor any showing that the Court may properly consider it, here. (See *Windigo Mills*, *supra*, 92 Cal.App.3d at 595.)

Based on the foregoing, the Court does not find that Petitioner has carried his burden of showing that he is entitled to a writ of mandamus based on any lack of notice or deprivation of constitutional due process.

2. Appearance and Risk of Bias

Petitioner argues that permitting Joseph Leach to preside over the July 24, 2025, administrative hearing created an appearance and risk of bias.

There is, in the record before the Court, no indication that Petitioner raised this argument in connection with his appeal or in his November 10, 2025, Statement to the City Council. The

issue is not discussed in either Exhibits K or L to the June 25 Woodson Decl. As such, Mr. Woodson fails to carry his burden of demonstrating that the issue was raised at the administrative level. (See *Sierra Club*, *supra*, 163 Cal.App.4th at 536.)

3. Lack of Evidentiary Support

Petitioner next argues that “[t]he November 25, 2025 written decision states that Petitioner ‘alleges a failure to notify him of the violations appealed herein. However, Mr. Woodson provides no evidentiary support to that allegation.’ [Citation.] The administrative record, including the City’s own internal communications produced in this matter, refutes that finding on its face.” (Support Memo at 16:17-21.)

The record before the Court does not include the “City’s own internal communications produced in this matter.” Petitioner fails to show that these matters were part of the record before the City Council. He also fails to show that they satisfy any of the exceptions set forth in Code of Civil Procedure section 1094.5, subdivision (e). As such, the Court is not authorized to consider them here. (See *Windigo Mills*, *supra*, 92 Cal.App.3d at 595.)

Based on the foregoing, Petitioner fails to establish that the Council’s finding that Petitioner failed, in his appeal to the City Council, to provide evidentiary support for his contention that the City failed to notify him of the violations is either without evidentiary support.

4. Ignorance of the Law

Petitioner next argues that “[t]he November 25, 2025 written decision recharacterizes Petitioner’s argument as ‘ignorance of the law’ and cites *Hopkins & Carley v. Gens* for that proposition. The recharacterization is itself a legal error.” (Support Memo at 18:8-10.)

No language appearing in the Summary and Ruling Following Appeal to the City Council appears, to the Court, to characterize Petitioner’s argument as “ignorance of the law.” It does not cite to *Hopkins & Carley v. Gens*.

These matters are discussed in the October 10, 2025 Summary & Ruling following the July 24, 2025 administrative hearing conducted by Joseph M. Leach. (See Exhibit J to the Declaration of Reed Woodson filed June 25, 2026.)

However, there is, in the record before the Court, no indication that Petitioner raised this issue in connection with his appeal or in his November 10, 2025, Statement to the City Council. The issue is not discussed in either Exhibits K or L to the June 25 Woodson Decl. As such, Mr. Woodson fails to carry his burden of demonstrating that he exhausted his administrative remedy as to this issue. (See *Sierra Club*, *supra*, 163 Cal.App.4th at 536.)

5. City Code Amendment

Finally, Petitioner argues that the City's subsequent amendment of its Municipal Code "reinforce Petitioner's argument that the framework applied to him was unclear and required careful due process review, not the summary rejection reflected in the November 25, 2025, decision." (Support Memo at 19:18-20.)

The argument is vague and ambiguous. It does not appear, to the Court, to state grounds for directing Respondent to vacate the subject decision.

6. Remaining Allegations

Petitioner fails to support any of the remaining allegations of the Petition with argument in his Support Memo. Petitioner fails, therefore, to carry its burden of persuasion on any grounds for relief arising out of the remaining allegations of the Petition.

D. CONCLUSION

Based on the foregoing, the Petition for Writ of Mandamus is DENIED.